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Human Rights Council
Working Group on Arbitrary Detention

Opinions adopted by the Working Group on Arbitrary Detention at its 103rd session, 25–29 August 2025

Opinion No. 56/2025 concerning Ahmed Shawky Abdelsattar Mohamed Amasha (Egypt)

1. The Working Group on Arbitrary Detention was established in resolution 1991/42 of the Commission on Human Rights. In its resolution 1997/50, the Commission extended and clarified the mandate of the Working Group. Pursuant to General Assembly resolution 60/251 and Human Rights Council decision 1/102, the Council assumed the mandate of the Commission. The Council most recently extended the mandate of the Working Group for a three-year period in its resolution 51/8.

2. In accordance with its methods of work,[1] on 25 October 2024 the Working Group transmitted to the Government of Egypt a communication concerning Ahmed Shawky Abdelsattar Mohamed Amasha. The Government replied to the communication on 20 December 2024. The State is a Party to the International Covenant on Civil and Political Rights.

3. The Working Group regards deprivation of liberty as arbitrary in the following cases:

(a) When it is clearly impossible to invoke any legal basis justifying the deprivation of liberty (as when a person is kept in detention after the completion of his or her sentence or despite an amnesty law applicable to him or her) (category I);

(b) When the deprivation of liberty results from the exercise of the rights or freedoms guaranteed by articles 7, 13, 14, 18, 19, 20 and 21 of the Universal Declaration of Human Rights and, insofar as States Parties are concerned, by articles 12, 18, 19, 21, 22, 25, 26 and 27 of the Covenant (category II);

(c) When the total or partial non-observance of the international norms relating to the right to a fair trial, established in the Universal Declaration of Human Rights and in the relevant international instruments accepted by the States concerned, is of such gravity as to give the deprivation of liberty an arbitrary character (category III);

(d) When asylum-seekers, immigrants or refugees are subjected to prolonged administrative custody without the possibility of administrative or judicial review or remedy (category IV);

(e) When the deprivation of liberty constitutes a violation of international law on the grounds of discrimination, based on birth, national, ethnic or social origin, language, religion, economic condition, political or other opinion, gender, sexual orientation, disability or any other status, that aims towards or can result in ignoring the equality of human beings (category V).

[1] A/HRC/36/38.

1. Submissions

(a) Communication from the source

4. Ahmed Shawky Abdelsattar Mohamed Amasha is an Egyptian veterinarian, environmentalist and human rights activist.

5. According to the source, Mr. Amasha is a member of the coordination committee of the Kefaya opposition movement, which rose as a reform movement in 2004 during the Government of the former President, Hosni Mubarak. Mr. Amasha is best known for campaigning against a petrochemical factory in his hometown, Dumyat, also known as Damietta. His efforts helped to establish the Arab Society for the Environment and Sustainable Development. Around 2015, he founded the Association of the Families of the Forcibly Disappeared, which raises awareness of enforced and involuntary disappearance and provides domestic and international legal assistance to victims' relatives. He was also the Secretary-General of the Association for the Defence of the Oppressed, a committee within the Egyptian Journalists Syndicate, founded to defend journalists detained for voicing their opinions.

6. The source explains that Mr. Amasha has previously been arrested and detained, in 2011 and 2017, the latter occasion having been deemed arbitrary by the Working Group.[2]

(i) Arrest and detention

7. On 17 June 2020, police officers reportedly arrested Mr. Amasha at his apartment in Cairo without presenting an arrest warrant or informing him of the reason for his arrest. He was blindfolded and taken to an unknown location, where he was allegedly interrogated about his relations with the Muslim Brotherhood and human rights movements. During his interrogation, he was reportedly blindfolded, stripped naked and electrocuted. He was also beaten and hung from his hands. Despite his ribs breaking, he was not provided with medical care. It is further alleged that he was not allowed to inform anyone about the arrest or to communicate with the outside world and was subjected to enforced disappearance for 26 days.

8. According to the source, Mr. Amasha reappeared on 12 July 2020, before the Supreme State Security Prosecution in Cairo, where he was charged with knowingly joining a terrorist group and printing and recording materials that propagate the goals of the group in question, along with 37 other defendants (case No. 1360/2019). His lawyer could reportedly only communicate with him through a glass wall. During his interrogation, Mr. Amasha stated that he had been electrocuted and badly beaten in detention.

9. The source states that, after the hearing, Mr. Amasha was taken to the Al-Aqrab 2 facility in the Tora high-security prison complex. He was reportedly not allowed to communicate with his attorney or family members, and copies of the charges and other case documents were not made available to him or his attorney.

10. According to the source, on 20 July 2020, Mr. Amasha was examined by a government forensic specialist, who concluded that he was in stable condition and found no evidence of recently inflicted injuries, despite his complaint of rib pain. The specialist recommended a hospital X-ray, but this was never granted.

11. The source reports that, thereafter, the Supreme State Security Prosecution renewed Mr. Amasha's detention 10 times, for 15 days each time.

12. On 7 December 2020, Mr. Amasha's attorney allegedly saw him in Al-Aqrab 2 from far away. He was in a glass cell, where he was kept with 250 other detainees.

13. The source states that, around December 2020 or January 2021, Mr. Amasha was summoned before the terrorism circuit court, which has the authority to extend a period of detention for 45 days, and which extended Mr. Amasha's detention in accordance with that authority.

[2] See opinion No. 78/2017.

Advance edited version

14. In March 2021, Mr. Amasha received a referral to a university hospital for surgery. However, the source claims that prison officials decided that the surgery should be performed in the prison hospital. Fearing complications, Mr. Amasha requested that the surgery be performed at his own expense at an external hospital, but the request was rejected, and no surgery was performed.

15. The source reports that Mr. Amasha was not granted access to medical care, physical exercise, a pen and paper, or books in Al-Aqrab 2, was denied food for days and was exposed to the sun for extended periods. He also developed a skin condition that remained untreated.

16. On 21 August 2022, Mr. Amasha appeared before the terrorism circuit court with his attorney. The source reports that Mr. Amasha was barely able to walk, had lost weight and complained of medical negligence. According to the examining physician, however, his condition was stable, and the court again extended his detention.

17. On 29 August 2022, Mr. Amasha appeared before the Supreme State Security Prosecution to sign a document relating to a court referral, namely, a referral to the third terrorism circuit of the Supreme State Security Criminal Court on charges of knowingly joining a terrorist group and having printed and recorded materials that propagate the goals of the group in question, in case No. 1360/2019. The prosecution referred to Mr. Amasha's purported admission to having participated in a Muslim Brotherhood demonstration on 2 July 2013, documents indicating his membership of the Association of the Families of the Forcibly Disappeared and other rights organizations working against enforced disappearance and torture, and his contact with unspecified foreign media. Mr. Amasha was mainly questioned about his allegiance to the Muslim Brotherhood. According to the source, Mr. Amasha repeated what he had said in the interrogations, namely, that he had no relation to the Muslim Brotherhood but was interested in freedom of speech and human rights issues, such as enforced disappearance, torture and detention conditions.

18. Around September 2022, Mr. Amasha was allegedly moved to Badr prison, east of Cairo.

19. On 3 October 2022, Mr. Amasha's trial before the Supreme State Security Criminal Court began.

20. The source claims that, since September 2022, Mr. Amasha has been held in an isolation cell with continuous artificial lighting and 24-hour camera surveillance and allowed limited outdoor exercise. His physical condition has deteriorated. He suffers from diabetes, for which he has not received medical attention. Mr. Amasha's attorney has seen him in court but cannot speak with him, as he is behind a glass wall.

21. In October 2022, Mr. Amasha reportedly joined other detainees in a hunger strike to protest prison conditions, which included receiving limited food and one bottle of water per person per week.

22. On 26 November 2022, the Supreme State Security Criminal Court judge asked Mr. Amasha's defence counsel to waive the right to examine the flash drives allegedly belonging to the defendants. Mr. Amasha's counsel refused.

23. Mr. Amasha's family members were allowed to visit him once in May 2023 and a second time on 15 July 2023. They have not been informed of upcoming visits.

24. The source notes that, on 11 November 2022, the Working Group, together with the Special Rapporteur on the situation of human rights defenders and the Working Group on Enforced or Involuntary Disappearances, sent a communication to Egypt regarding Mr. Amasha.[3]

(ii) Legal analysis

25. The source argues that Mr. Amasha's detention is arbitrary under categories I, II, III and V of the categories outlined in the Working Group's methods of work.

[3] See communication EGY 10/2022, available at https://spcommreports.ohchr.org/TMResultsBase/DownLoadPublicCommunicationFile?gId=27632.

Advance edited version

a. Category I

26. The source contends that Mr. Amasha was arrested without being presented with an arrest warrant and without being informed of the reasons for his arrest. Furthermore, he only learned about the charges against him on 12 July 2020, nearly one month after his arrest. As a result, the source argues that the authorities violated article 9 of the Universal Declaration of Human Rights, article 9 (2) of the Covenant and principles 2, 4 and 10 of the Body of Principles for the Protection of All Persons under Any Form of Detention or Imprisonment.

b. Category II

27. The source argues that Mr. Amasha's detention results from his work with organizations such as the Association for the Defence of the Oppressed and the Association of the Families of the Forcibly Disappeared, in relation to torture, detention conditions, enforced disappearance and freedom of speech. It recalls that, during his appearance before the Supreme State Security Prosecution on 29 August 2022, prosecutors specifically referred to Mr. Amasha's membership of the Association of the Families of the Forcibly Disappeared and other organizations working against enforced disappearance and torture, and his contact with unspecified foreign media outlets. The source further argues that the terrorism charges against Mr. Amasha are unfounded. It notes that he has denied any connection to the Muslim Brotherhood, and argues that no substantial evidence of such a connection has been provided.

28. According to the source, Mr. Amasha's human rights work, the topics addressed during his interrogation, the reason for his previous detention in 2017 and the wider pattern of detention for the exercise of basic rights in Egypt show that Mr. Amasha's deprivation of liberty results from the peaceful exercise of his right to freedom of opinion and expression, and his right to freedom of peaceful assembly and association, in violation of articles 19 and 20 (1) of the Universal Declaration of Human Rights and articles 19 (1), 21 and 22 (1) of the Covenant.

c. Category III

29. The source argues that the authorities violated several norms of international human rights law relating to Mr. Amasha's right to a fair trial.

30. The source reiterates that Mr. Amasha was arrested without being presented with an arrest warrant or informed of the reason for his arrest. He also was not promptly informed of the charges against him. All of this violates article 9 (2) of the Covenant and principles 2, 4 and 10 of the Body of Principles for the Protection of All Persons under Any Form of Detention or Imprisonment.

31. The source contends that, after Mr. Amasha's arrest on 17 June 2020, his fate and whereabouts remained unknown until 12 July 2020, when he appeared before the Supreme State Security Prosecution. His family members were not allowed to visit him until May 2023, nearly three years after his arrest, and a second time on 15 July 2023. Therefore, the source argues that Mr. Amasha was forcibly disappeared for 26 days and subsequently held incommunicado for nearly three years, in violation of article 6 of the Universal Declaration of Human Rights, article 16 of the Covenant and principles 15, 16 (1) and 19 of the Body of Principles for the Protection of All Persons under Any Form of Detention or Imprisonment.

32. The source notes that Mr. Amasha was first brought before a court, the terrorism circuit court, in December 2020 or January 2021, more than six months after his initial arrest. It points out that the Supreme State Security Prosecution is a special branch of the Public Prosecution and cannot be considered a court, despite the excessive powers given to prosecutors that are normally reserved for judges. The source argues that, by depriving Mr. Amasha of his right to a prompt appearance before a judicial authority, the authorities violated article 8 of the Universal Declaration of Human Rights, articles 2 (3) and 9 (3) and (4) of the Covenant and principles 11 (1), 32 (1) and 37 of the Body of Principles for the Protection of All Persons under Any Form of Detention or Imprisonment.

33. The source submits that, since Mr. Amasha's arrest on 17 June 2020, he has not been allowed direct contact with his attorney and that all of his interrogations have taken place without an attorney. Mr. Amasha's attorney reportedly saw him for the first time only on

Advance edited version

12 July 2020, 26 days after his arrest, at the hearing before the Supreme State Security Prosecution, but was not able to communicate with him. In subsequent hearings, Mr. Amasha was held behind a glass wall with hundreds of other detainees, without any opportunity to communicate with his attorney. A copy of the charges and other case documents have reportedly not been made available to Mr. Amasha or his attorney. The source argues that, by not granting Mr. Amasha access to an attorney, and by denying him access to the documents necessary to prepare his defence, the authorities violated article 11 (1) of the Universal Declaration of Human Rights, article 14 (3) (b) of the Covenant, principles 15 and 17 of the Body of Principles for the Protection of All Persons under Any Form of Detention or Imprisonment, principle 7 of the Principles on the Role of Lawyers, and principle 9 and guideline 8 of the United Nations Basic Principles and Guidelines on Remedies and Procedures on the Right of Anyone Deprived of Their Liberty to Bring Proceedings Before a Court.

34. The source argues that Mr. Amasha's poor detention conditions and the violence at the beginning of his detention have impaired his ability to prepare his defence and constitute torture and cruel, inhuman or degrading treatment. It further alleges that officials have failed to investigate these violations. The source argues that the authorities have, therefore, inhibited Mr. Amasha's right to a fair trial and defence, and violated article 5 of the Universal Declaration of Human Rights, articles 7 and 10 (1) of the Covenant, principles 1 and 6 of the Body of Principles for the Protection of All Persons under Any Form of Detention or Imprisonment, articles 2, 13 and 16 of the Convention against Torture and Other Cruel, Inhuman or Degrading Treatment or Punishment, and rules 1, 13, 14, 18, 22, 23 and 42 of the United Nations Standard Minimum Rules for the Treatment of Prisoners (the Nelson Mandela Rules).

35. According to the source, the bodies responsible for appointing judges in Egyptian specialized courts are not independent of the executive branch. The source argues that hearings before the terrorism circuit court and the terrorism circuit of the Supreme State Security Criminal Court violate the right to be tried before an independent and impartial tribunal because the judges are appointed by the President of Egypt following consultation with the defence minister or the justice minister.[4] The source emphasizes that the Human Rights Committee has expressed concern regarding the nature of such specialized courts, which are often established to enable exceptional procedures that do not comply with normal standards of justice.[5]

36. The source argues that, by detaining Mr. Amasha on the basis of an order from the terrorism circuit court and conducting his trial before the Supreme State Security Criminal Court, both specialized courts lacking independence, the authorities violated article 10 of the Universal Declaration of Human Rights and article 14 (1) of the Covenant.

37. The source recalls that Mr. Amasha was arrested on 17 June 2020 and charged on 12 July 2020. Although his trial before the Supreme State Security Criminal Court began on 3 October 2022, the Court is yet to render a decision. Mr. Amasha has therefore been detained for more than four years without a decision being rendered in his case. It argues that the delay is not attributable to Mr. Amasha and that the duration of his pretrial detention exceeds the reasonable time standard. It submits that, by depriving Mr. Amasha of his right to be tried within a reasonable time, the authorities have violated articles 9 (3) and 14 (3) (c) of the Covenant.

38. The source underlines that certain violations of an individual's rights during the investigation and trial may indicate that he or she has not been presumed innocent: the violation of the right to be tried within a reasonable time; excessively lengthy pretrial detention; an arrest without a legal basis; lack of access to an attorney, and lack of an opportunity to challenge the detention; and torture. [6]

[4] Opinion No. 60/2022, para. 45.

[5] Opinion No. 79/2021, para. 89.

[6] For instance, opinions No. 27/2011, para. 34 (where pretrial detention for more than a year was considered to compromise the presumption of innocence); and No. 36/2011, paras. 36 and 37.

Advance edited version

39. The source argues that Mr. Amasha was not informed of the reason for his arrest at the time of the arrest, was forcibly disappeared, was held incommunicado, was not brought promptly before a court, was tortured with the goal of extracting incriminating statements, was not provided with timely access to an attorney, was not promptly informed of the charges against him, has been detained for an excessively long time, and has not been tried within a reasonable time. The source argues that, taken together, these violations indicate a violation of Mr. Amasha's right to be presumed innocent, contrary to article 11 (1) of the Universal Declaration of Human Rights and article 14 (2) of the Covenant.

d. Category V

40. The source recalls that Mr. Amasha was detained for exercising his rights to freedom of opinion and expression, and to freedom of peaceful assembly and association, in relation to his activities as the founder of the Association of the Families of the Forcibly Disappeared, as Secretary-General of the Association for the Defence of the Oppressed and as a peaceful human rights defender. The source submits that any discrimination that is based on divergent political or other opinions, such as those supporting environmental and human rights, constitutes a violation of international law.

41. The source recalls that Mr. Amasha was detained for similar activities in 2017, notably his involvement with the Kefaya protests and an environmental protest against a petrochemical factory, making it clear that his long-term human rights activism, his status as a vocal human rights defender and his political opinion are central to the present case. The source argues that, as a peaceful human rights defender, Mr. Amasha must be afforded a protected status.[7]

42. The source contends that the authorities discriminated against Mr. Amasha on the basis of his political opinion and therefore violated articles 2 and 7 of the Universal Declaration of Human Rights and articles 2 (1) and 26 of the Covenant.

(b) Response from the Government

43. On 25 October 2024, the Working Group transmitted the allegations from the source to the Government under its regular communications procedure. The Working Group requested the Government to provide, by 24 December 2024, detailed information about Mr. Amasha's current situation and to clarify the legal provisions justifying his continued detention, and its compatibility with the obligations of Egypt under international human rights law, and in particular with regard to the treaties ratified by the State. Moreover, the Working Group called upon the Government to ensure his physical and mental integrity.

44. In its response, submitted on 20 December 2024, the Government states that Mr. Amasha is a member of the Islamic Brotherhood terrorist group, which – in the wake of the 2013 revolution – started to use violence and recruit new members to disrupt public order, endanger the safety, interests and security of society, and obstruct public authorities from carrying out their work, all with the aim of overthrowing the State.

45. The Government notes that joining and participating in terrorist organizations is criminalized by the anti-terrorism law.

46. Based on the investigations conducted by the security authorities and available evidence, the Public Prosecution exercised its discretionary authority to issue, on 26 February 2017, a reasoned authorization, in accordance with the Code of Criminal Procedure of Egypt, for the arrest of Mr. Amasha and a search of his residence.

47. On 31 March 2017, Mr. Amasha was arrested in connection with case No. 316/2017. He was found in possession of publications related to the Muslim Brotherhood, of documents containing allegations of violations inside prisons and information about prison staff, inciting support for an uprising in Sinai, and of documents entitled "How to create resentment and ignite anger" and "Qualities of the mujahidin as mentioned by Imam Al-Banna".

[7] Opinion No. 48/2017, para. 50.

Advance edited version

48. On 1 April 2017, Mr. Amasha was presented before the Public Prosecution, which interrogated him in the presence of his lawyer and confronted him with the charges of joining a terrorist group. On that basis, Mr. Amasha was provisionally detained and then conditionally released, while the case continued to be investigated.

49. Mr. Amasha was arrested again on 10 July 2020, in connection with case No. 1360/2019, on the basis of an arrest and detention warrant issued on 8 July 2020 by the Public Prosecution. He was apprehended in the vicinity of his residence, and printed materials related to the Muslim Brotherhood terrorist organization were found in his possession. On 11 July 2020,[8] he appeared before the Public Prosecution, which interrogated him in his lawyer's presence and confronted him with the charges against him, which included leading and financing a terrorist group.

50. During his interrogation, Mr. Amasha claimed that he had been beaten during his detention. The Public Prosecution accordingly decided to detain him provisionally, pending the outcome of the case, and ordered his physical examination by a medical official, who reported not finding any signs or traces of recent injuries. The Government therefore considers that Mr. Amasha's allegations of torture are unfounded.

51. On 30 August 2022, Mr. Amasha was referred for criminal prosecution in case No. 1360/2019. The case was sent to the Cairo Court of Appeal to be referred to the competent criminal court. He is currently detained at Badr 3 rehabilitation and corrections centre and receives visits from his family regularly, the latest being on 9 November 2024.

52. As for Mr. Amasha's health condition, the Government states that his vital signs are within normal ranges, and his general condition is stable. All forms of care are being provided to him, and he is allowed to exercise on a regular basis, like all the other inmates.

53. All legal procedures taken against him were well founded, and his interrogation by the Public Prosecution was conducted in accordance with the Code of Criminal Procedure, and in line with the international treaties signed by Egypt, in particular article 9 (2) and (3) of the Covenant. Mr. Amasha was informed of the charges against him and was given every opportunity to defend himself with the assistance of lawyers at all stages of the proceedings, in accordance with article 124 of the Code of Criminal Procedure.

54. The decisions to keep Mr. Amasha in pretrial detention were lawful, and the extensions of the period of pretrial detention were decided by a competent judge. Mr. Amasha was granted full procedural rights to present oral arguments, submit requests and raise objections, in accordance with articles 134, 142 and 143 of the Code of Criminal Procedure.

55. The decisions relating to Mr. Amasha's pretrial detention were based on objective assessments made by the Public Prosecution, including regarding the risk of influencing witnesses, tampering with evidence and colluding with co-perpetrators, in line with international standards for terrorism cases.

56. Lastly, the Government rejects the source's claim of discrimination against Mr. Amasha due to his political views and reaffirms its commitment to promoting and protecting all human rights for all citizens without discrimination. It insists that the use of terms such as "political activist" and "human rights defender" cannot become a means to escape accountability.

(c) Additional comments from the source

57. The source, in additional comments submitted on 6 January 2025, points out that, while the Government states that Mr. Amasha was arrested on 10 July 2020, it does not specify that the arresting officials presented an arrest warrant or informed Mr. Amasha orally about the reason for his arrest at the time of the arrest. The source underlines that the Government has not provided any documentation evidencing the dates that it puts forth for the arrest and first appearance before the prosecution, despite being better positioned than the source to do so.

[8] In its response, the Government gives 11 July 2017 as the date, which the Working Group assumes to be a typographical error given the context.

Advance edited version

58. The source maintains that Mr. Amasha was arrested on 17 June 2020, and not 10 July 2020, as the Government claims. It provides, in support of its stated chronology, social media posts and reports from several human rights organizations and the media, dating from between 19 June and 1 July 2020 and recounting Mr. Amasha's disappearance on 17 June 2020.

59. The source further points out that, while the Government claims that Mr. Amasha is a member of the Islamic Brotherhood terrorist group, and while it briefly describes the documents that were allegedly found in Mr. Amasha's possession in 2017, it has not provided details on the concrete acts that Mr. Amasha is suspected to have committed in relation to his 2020 arrest and detention in case No. 1360/2019, except for the alleged possession of the printed materials mentioned above.

60. It maintains that, throughout his detention, Mr. Amasha has been denied visits by his attorney.

2. Discussion

61. The Working Group thanks the source and the Government for their submissions.

62. In determining whether Mr. Amasha's deprivation of liberty is arbitrary, the Working Group has regard to the principles established in its jurisprudence to deal with evidentiary issues. If the source has established a prima facie case for breach of international law constituting arbitrary detention, the burden of proof should be understood to rest upon the Government if it wishes to refute the allegations. Mere assertions by the Government that lawful procedures have been followed are not sufficient to rebut the source's allegations.[9]

(a) Category I

63. The source contends that police officers arrested Mr. Amasha on 17 June 2020 without presenting an arrest warrant or informing him of the reasons for his arrest. He was reportedly not informed of the charges against him until nearly one month after his arrest, when he appeared before the prosecution.

64. In its response, the Government states that Mr. Amasha was arrested on 10 July 2020, although it provides no information on the arrest procedure itself. It does not address the discrepancy regarding the date of the arrest or the source's claim that Mr. Amasha was forcibly disappeared between 17 June 2020 and his appearance before the prosecution, which, on the basis of the versions of events put forward by the source and the Government, appears to have occurred on either 11 or 12 July 2020.

65. The Working Group recalls that, in accordance with article 9 (2) of the Covenant, all persons who are arrested must not only be immediately informed of the reasons for arrest but must also be promptly informed of any charges against them thereafter.[10] Moreover, for a deprivation of liberty to have a legal basis, it is not sufficient that there is a law that may authorize the arrest. The authorities must invoke that legal basis and apply it to the circumstances of the case.[11] This is typically done through an arrest warrant or arrest order (or equivalent document).[12] In particular, the authorities must provide enough factual specifics to indicate the substance of the complaint, such as the wrongful act and the identity of the alleged victim.[13] The right to be presented with an arrest warrant, at least in situations that are not of flagrante delicto, is inherent to the right to liberty and security of person and to the prohibition of arbitrary detention, under articles 3 and 9 of the Universal Declaration of Human Rights and principles 2, 4 and 10 of the Body of Principles for the Prosecution of All Persons under Any Form of Detention or Imprisonment.

[9] A/HRC/19/57, para. 68.
[10] Opinion 77/2020, para. 59; and Human Rights Committee, general comment No. 35 (2014), para. 27.
[11] Opinions No. 9/2019, para. 29; No. 46/2019, para. 51; and No. 59/2019, para. 46.
[12] Human Rights Committee, general comment No. 35 (2014), para. 23; and opinions No. 88/2017, para. 27; No. 3/2018, para. 43; and No. 30/2018, para. 39.
[13] Opinions No. 30/2017, paras. 58 and 59; No. 25/2018, para. 36; and No. 85/2021, para. 69; and Human Rights Committee, general comment No. 35 (2014), para. 25.

Advance edited version

66. The Working Group, moreover, recalls that deprivation of liberty by agents of the State or persons acting with the authorization, support or acquiescence of the State, followed by a refusal to acknowledge the deprivation of liberty or by concealment of the fate or whereabouts of the disappeared person, is prohibited by international law. It constitutes a particularly aggravated form of arbitrary detention, notably as it places the person outside the protection of the law.[14]

67. In the present case, the Working Group considers, on the basis of the information before it, that the Government has failed to rebut the source's prima facie credible allegation that Mr. Amasha was indeed arrested on 17 June 2020, that he was not presented with a warrant or the reasons for his arrest at the time of arrest, and that he was forcibly disappeared until he appeared before the prosecution, on 11 or 12 July 2020. Indeed, the Government has presented no information, argumentation or documentation to challenge the source's factual allegations on any of these points. The Working Group takes note, in particular, of various media reports and reports of human rights organizations and of a Facebook post relied upon by the source, published between 19 June and 1 July 2020, which report Mr. Amasha's arrest and disappearance on 17 June 2020.

68. The Working Group accordingly concludes that the Government failed to meet its obligations under article 9 (1) and (2) of the Covenant and, moreover, that Mr. Amasha was subjected to enforced disappearance in breach of article 3 of the Universal Declaration of Human Rights, article 9 (1) of the Covenant and article 1 of the International Convention for the Protection of all Persons from Enforced Disappearance.

69. A glaring consequence of enforced disappearance is that it effectively deprives the detained individual of the right to challenge the legality of the detention before a court, in violation of article 9 (3) and (4) of the Covenant. Judicial oversight of any detention is a central safeguard for personal liberty and is critical in ensuring that the detention has a legitimate basis. The Working Group recalls that holding persons at secret locations and in circumstances undisclosed to the person's family violates their right to contest the legality of their detention before a court or tribunal under article 9 (3) and (4) of the Covenant.[15]

70. The same considerations apply to situations where an individual is held incommunicado, which, the source claims, happened in Mr. Amasha's case, as he was allowed his first family visit in May 2023, three years after his arrest, and has not been allowed direct contact with his lawyer throughout his detention. The Government responded to these claims with generalities and only specified the date of one family visit received by Mr. Amasha, which took place on 9 November 2024. It also has not offered any concrete information to rebut the allegation that Mr. Amasha did not have direct and confidential communication with his lawyer following his arrest. The Working Group therefore accepts the source's allegations regarding incommunicado detention, at least until the first family visit in May 2023, as prima facie credible.

71. Given the alleged period of enforced disappearance and of subsequent incommunicado detention, which the Government does not refute, the Working Group finds that Mr. Amasha was deprived of his rights under article 9 (3) and (4) of the Covenant and was placed outside the protection of the law, in violation of article 6 of the Universal Declaration of Human Rights and article 16 of the Covenant.[16]

72. Article 9 (3) of the Covenant, furthermore, provides that anyone arrested or detained on a criminal charge should be brought promptly before a judge. As the Human Rights Committee has stated, 48 hours is ordinarily sufficient to satisfy the requirement for promptness. Any delay longer than that must remain absolutely exceptional and be justified under the circumstances.[17] In the present case, the source has submitted that Mr. Amasha first

[14] See opinions No. 5/2020, No. 6/2020, No. 11/2020, No. 13/2020, No. 77/2020, No. 38/2021 and No. 53/2022. See also opinions No. 13/2020, para. 51; No. 56/2023, para. 92; and No. 17/2024, para. 60; and Human Rights Committee, general comment No. 35 (2014), para. 17.

[15] Opinion No. 17/2024, para. 62.

[16] See opinion No. 36/2020. See also Human Rights Committee, general comment No. 35 (2014), para. 35.

[17] Human Rights Committee, general comment No. 35 (2014), paras. 32 and 33.

Advance edited version

appeared before a judge around December 2020 or January 2021, when he appeared before the terrorism circuit court, a timeline that the Government does not dispute, and which the Working Group accepts as prima facie credible.

73. It follows from the findings above that Mr. Amasha's right to be brought promptly before a judge following arrest was therefore also violated, contrary to article 9 (3) of the Covenant and principle 32 of the Body of Principles for the Protection of All Persons under Any Form of Detention or Imprisonment.

74. The Working Group further notes that, according to both the source's and the Government's submissions, Mr. Amasha appeared on 11 or 12 July 2020 before the prosecution, which subsequently renewed his detention 10 times, for 15 days each time. The Government does not address, let alone refute, the source's claim that Mr. Amasha's first appearance before a judge took place around December 2020 or January 2021, or the prosecution's role in renewals of the pretrial detention until then, although it does stress that the procedures followed complied with the applicable domestic legislation. The Working Group recalls that a prosecutor cannot be considered a judicial authority for the purposes of article 9 (3) of the Covenant.[18] The fact that a State is following its domestic legislation does not in itself mean that the legislation in question conforms with the obligations that the State has undertaken under international human rights law. In other words, no State can legitimately avoid its obligations arising from international human rights law by hiding behind its domestic legal framework.[19]

75. In the light of all of the above, the Working Group considers that the deprivation of liberty of Mr. Amasha is arbitrary under category I.

(b) Category II

76. The source argues that the deprivation of Mr. Amasha's liberty is arbitrary under category II because it results from a violation of the exercise of his rights to freedom of opinion and expression and to freedom of peaceful assembly and association and his long-standing work with various human rights organizations, notably on cases of enforced disappearance. It notes that, during his enforced disappearance, he was interrogated about his relations with human rights movements and that prosecutors specifically referred to his membership of the Association of the Families of the Forcibly Disappeared and other human rights organizations, as well as his contact with foreign media.

77. The Government, for its part, claims that Mr. Amasha "is a member of the Islamic Brotherhood terrorist group" and that publications related to that organization were found in his possession. It has provided no further detail on the factual elements underlying the charges against Mr. Amasha.

78. The Working Group recalls that freedom of opinion and expression is a fundamental human right, guaranteed in article 19 of the Universal Declaration of Human Rights and article 19 of the Covenant. It protects even that which may shock, offend or disturb or which may insult an individual or group or criticize an institution.[20] Moreover, the Working Group applies a heightened standard of review in cases in which freedom of expression and opinion is restricted or where human rights defenders are involved.

79. The Working Group considers that the conduct of human rights defenders is also protected by the Declaration on the Right and Responsibility of Individuals, Groups and Organs of Society to Promote and Protect Universally Recognized Human Rights and Fundamental Freedoms, which notably states that everyone has the right, individually and in association with others, to promote and to strive for the protection and realization of human rights and fundamental freedoms at the national and international levels and to join, form, participate in and communicate with non-governmental organizations (arts. 1 and 5).

[18] Ibid., para. 32; opinions No. 14/2015, para. 28; No. 5/2020, para. 72; No. 6/2020, para. 47; and No. 41/2020, para. 60; and A/HRC/45/16/Add.1, para. 35.

[19] Opinion No. 17/2021, para. 127.

[20] See opinions No. 7/2008, No. 35/2012, No. 46/2013, No. 4/2019 and No. 33/2019.

Advance edited version

80. While articles 19 (3), 21 and 22 (2) of the Covenant allow restrictions on the rights to freedom of expression and to freedom of peaceful assembly and association, the Working Group recalls that such restrictions must not be used to stifle the expression of political opposition, challenges to authority, calls for democratic changes, or human rights advocacy.[21] In the present case, the Government has not demonstrated in any manner how the exercise of the freedoms in question posed a threat justifying the imposition of restrictions under those articles; neither has it presented any information that any of Mr. Amasha's actions was violent, constituted incitement to violence or led to violence by others.

81. The Working Group notes, furthermore, that the Human Rights Committee has referred to the excessively broad and vague definitions of terrorism laid down in some of the legislation of Egypt and has expressed its concern at reports that such laws are used, in combination with restrictive legislation on fundamental freedoms, to silence actual or perceived critics of the Government, including peaceful protesters, lawyers, journalists, political opponents and human rights defenders.[22]

82. The Working Group therefore finds that Mr. Amasha was targeted for arrest and detention because of the exercise of his freedom of opinion and expression and his freedom of association and his work as a human rights defender, in violation of articles 19 and 20 of the Universal Declaration of Human Rights and articles 19 and 22 of the Covenant. His deprivation of liberty is thus arbitrary under category II.

(c) Category III

83. Given the Working Group's finding that Mr. Amasha's detention is arbitrary under category II, the Working Group emphasizes that no trial should have taken place. The trial having begun, however, the Working Group will now proceed to consider the submissions concerning the denial of his fair trial rights.

84. The source notes that, since Mr. Amasha's arrest on 17 June 2020, he has not been allowed direct contact with his attorney and that all of his interrogations have taken place without an attorney present. It describes Mr. Amasha as being held behind a glass wall with hundreds of other detainees during court hearings, without any opportunity to communicate with his attorney. A copy of the charges and other case documents have reportedly not been made available to Mr. Amasha or his attorney.

85. In its response, the Government states that Mr. Amasha benefited from legal assistance throughout the proceedings and that, when he was presented to the prosecution, he was interrogated in the presence of his lawyer.

86. The Working Group is not convinced by the Government's general affirmation. Even if it were to accept that Mr. Amasha may have been interrogated in his lawyer's presence at his first appearance before the prosecution, it considers it significant that the Government has not presented any concrete information to the effect that Mr. Amasha was able to consult with that lawyer before or after that interrogation or at any other stage of the proceedings. In particular, the Government has not rebutted the source's claim that, at each court hearing held so far, Mr. Amasha has remained behind a glass wall with multiple other defendants, unable to have direct contact with his lawyer.

87. The Working Group recalls that all persons deprived of their liberty have the right to legal assistance by counsel of their choice at any time during their detention, including immediately after their apprehension, and that such access should be provided without delay.[23]

88. The Working Group notes that the right to communicate with counsel as encapsulated in article 14 (3) (b) of the Covenant entails the requirement that counsel should be able to meet the client in private and to communicate with that client in conditions that fully respect

[21] General comment No. 37 (2020), para. 49.
[22] CCPR/C/EGY/CO/5, para. 13.
[23] A/HRC/45/16, paras. 51–53. See also the United Nations Basic Principles and Guidelines on Remedies and Procedures on the Right of Anyone Deprived of Their Liberty to Bring Proceedings Before a Court, principle 9 and guideline 8.

Advance edited version

the confidentiality of their communications.[24] As this was not observed in the present case, the Working Group finds that Mr. Amasha's right to adequate time and facilities for the preparation of his defence and to communicate with counsel of his own choosing has been violated, in breach of article 11 (1) of the Universal Declaration of Human Rights and article 14 (3) (b) of the Covenant.

89. The Working Group is troubled by allegations of ill-treatment experienced by Mr. Amasha, including that he was blindfolded, stripped naked, electrocuted, beaten, handcuffed, and hung from his hands. In addition, he appears to have been denied medical care on a number of occasions, for rib pain possibly caused through the ill-treatment that he suffered, for a skin condition and, on another occasion, when his requests for external medical intervention were rejected by prison officials. The Working Group also notes the source's claim that, on 21 August 2022, when appearing before the terrorism circuit court, Mr. Amasha was apparently barely able to walk and had lost a considerable amount of weight.

90. The Government responds that, after Mr. Amasha claimed that he had been beaten, the prosecution ordered a physical examination by a medical specialist who found no traces of physical injuries. It alludes in general terms to the health status of Mr. Amasha as being normal and stable.

91. While the Government provides no further specifics on the physical examination that Mr. Amasha underwent, the Working Group notes that, assuming that this occurred sometime after his arrest on 17 June 2020 and after his appearance before the prosecution on 11 or 12 July 2020, at least 24 days would have passed, which may have contributed to some of the signs of ill-treatment fading. Indeed, the source claims that the medical examination took place on 20 July 2020, which is unchallenged by the Government, and that, despite the medical examiner recommending an X-ray, this was not granted. On the basis of these considerations, the Working Group is therefore inclined to accept the source's submissions regarding ill-treatment and denial of medical care to Mr. Amasha.

92. The Working Group underlines that detainees should be protected from any practices that violate their right to be free from any act that could cause severe pain or suffering, whether physical or mental, and that is inflicted intentionally. In accordance with article 2 of the Convention against Torture, the right to freedom from torture and other ill-treatment or punishment is absolute and non-derogable.[25] In other words, it applies in all circumstances and may never be restricted, including in times of war or during a state of emergency. No exceptional circumstances whatsoever, including threats of terrorism or violent crime, may be invoked to justify torture or other ill-treatment. That prohibition applies irrespective of the offence allegedly committed by the accused person.[26]

93. The Working Group finds that the Government has not rebutted the allegation that the absolute prohibition of torture and ill-treatment enshrined in article 5 of the Universal Declaration of Human Rights, articles 7 and 10 (1) of the Covenant and articles 2 and 16 (1) of the Convention against Torture was breached. It recalls that torture is not only a grave violation of human rights per se but also undermines the ability to defend oneself, thereby hindering the exercise of the right to a fair trial. The Working Group notes that the use of confessions extracted through ill-treatment that is tantamount, if not equivalent, to torture is a breach of article 14 (3) (g) of the Covenant,[27] and may also constitute a violation of the State's obligations under article 15 of the Convention against Torture. Furthermore, principle 21 of the Body of Principles for the Protection of All Persons under Any Form of Detention or Imprisonment specifically prohibits taking undue advantage of the situation of a detained person to compel him or her to confess or make incriminating statements.

[24] Human Rights Committee, general comment No. 32 (2007), para. 34. See also *Khomidov v. Tajikistan* (CCPR/C/81/D/1117/2002), para. 6.4; *Siragev v. Uzbekistan* (CCPR/C/85/D/907/2000), para. 6.3; and *Gridin v. Russian Federation* (CCPR/C/69/D/770/1997 and CCPR/C/69/D/770/1997/Corr.1), para. 8.5. See also, for example, opinions No. 42/2018, No. 83/2018 and No. 67/2020.

[25] Committee against Torture, general comment No. 2 (2007), para. 5.

[26] Opinion No. 42/2021, para. 76.

[27] Human Rights Committee, general comment No. 32 (2007), paras. 6, 41 and 60.

Advance edited version

94. The Working Group further reiterates that every detainee has the right to the highest attainable standard of physical and mental health.[28] Sick prisoners whose health conditions require treatment by a specialist should be transferred to specialized institutions or to civil hospitals. Moreover, denial of medical care can constitute a form of torture and cruel or inhuman treatment.

95. The Working Group considers that the torture suffered by Mr. Amasha, as well as the failure to provide him with adequate medical care, significantly undermined his ability to defend himself. That is an additional element leading the Working Group to consider that Mr. Amasha's right to a fair trial was violated.[29]

96. The Working Group further notes that Mr. Amasha was charged, along with 37 others, in case No. 1360/2019. It recalls that mass trials are incompatible with the interests of justice and do not meet the standards of a fair trial, since they risk seriously jeopardizing the rights of the accused and preclude an individualized assessment of their culpability beyond reasonable doubt.[30]

97. In addition, despite having been detained since his arrest on 17 June 2020, as of the date of the source's additional submission, 6 January 2025, Mr. Amasha's trial had still not concluded and no decision had been rendered in his case. The right of an accused person to be tried without undue delay is designed not only to avoid keeping persons too long in a state of uncertainty about their fate and, if held in detention during the period of the trial, to ensure that such deprivation of liberty does not last longer than necessary in the circumstances of the specific case, but also to serve the interests of justice. The Working Group has not been presented with any reasons to justify such a delay. It therefore finds a violation of article 14 (3) (c) of the Covenant.

98. The source argues that hearings before specialized courts such as the terrorism circuit court and the Supreme State Security Court violate the right to be tried before an independent and impartial tribunal. The Government does not respond to this argument.

99. The Working Group recalls that the right to be tried by a competent, independent and impartial tribunal in accordance with article 14 (1) of the Covenant and article 10 of the Universal Declaration of Human Rights is a core fair trial right. The Working Group's jurisprudence on this issue confirms that this right is absolute and admits of no exception.[31] While it notes that United Nations special procedure mandate holders, including the Working Group, have previously expressed their concerns about Egypt using terrorism circuit courts to target human rights defenders, silence dissent and lock up activists, the Working Group does not have sufficient information on Mr. Amasha's trial proceedings specifically to make a finding on this point.[32]

100. For all the reasons considered above, the Working Group is able to conclude that the violations of Mr Amasha's fair trial rights are of such gravity as to render his deprivation of liberty arbitrary under category III.

(d) Category V

101. The source submits that Mr. Amasha's detention is arbitrary in that it is the result of discrimination on the grounds of what it suggests are his "divergent" political opinions, which are illustrated by his human rights activities, notably as the founder of the Association of the Families of the Forcibly Disappeared and the Secretary-General of the Association for the Defence of the Oppressed.

102. The Government responds that Mr. Amasha is a member of the Islamic Brotherhood terrorist group, and argues that characterizing someone as a political activist or human rights defender cannot become a means to allow him or her to escape accountability. As discussed

[28] Opinion No. 42/2021, para. 78.
[29] Opinions No. 20/2022, para. 104; and No. 10/2024, para. 124. See also A/HRC/38/36, para. 18.
[30] Opinions No. 5/2023, para. 78; and No. 70/2023, para. 99.
[31] Opinion No. 76/2018, para. 55.
[32] See https://www.ohchr.org/en/press-releases/2020/10/egypt-uses-terrorism-trials-target-human-rights-activists-say-un-experts?LangID=E&NewsID=26364.

Advance edited version

above, however, the Government has not put forth any information to actually evidence Mr. Amasha's membership of that group, a group to which the source has, moreover, stated that Mr. Amasha has denied belonging.

103. The Working Group has established already that the detention of Mr. Amasha resulted from his peaceful exercise of fundamental rights. When a detention results from the active exercise of civil and political rights, there is a strong presumption that the detention also constitutes a violation of international law on the grounds of discrimination based on political or other views. The Government has failed to overturn this presumption.

104. The Working Group is of the view that the source has presented credible information that Mr. Amasha's persecution over the years has been the result of his activism. It notes with concern that the Working Group already issued an opinion in 2017 finding that a previous episode of arrest and detention to which Mr. Amasha had been subjected for his membership of the Kefaya opposition movement was arbitrary.[33]

105. The Working Group thus finds that Mr. Amasha was deprived of his liberty on discriminatory grounds, on the basis of his political or other opinion and his work as a human rights defender, in violation of articles 2 and 7 of the Universal Declaration of Human Rights and articles 2 (1) and 26 of the Covenant. His detention is therefore arbitrary under category V.

(e) Concluding remarks

106. The present opinion is one of several brought before the Working Group in recent years concerning arbitrary detention in Egypt,[34] and the Working has already found a previous instance of Mr. Amasha being detained to be arbitrary.[35] The Working Group remains concerned that this might indicate a widespread or systematic practice of arbitrary detention in Egypt. The Working Group underlines that States have the obligation not to engage in acts that could constitute crimes against humanity and to prevent and punish them if they are committed.

3. Disposition

107. In the light of the foregoing, the Working Group renders the following opinion:

> The deprivation of liberty of Mr. Amasha, being in contravention of articles 2, 3, 5, 6, 7, 9, 11, 19 and 20 of the Universal Declaration of Human Rights and articles 2, 7, 9, 10, 14, 16, 19, 22 and 26 of the International Covenant on Civil and Political Rights, is arbitrary and falls within categories I, II, III and V.

108. The Working Group requests the Government of Egypt to take the steps necessary to remedy the situation of Mr. Amasha without delay and bring it into conformity with the relevant international norms, including those set out in the Universal Declaration of Human Rights and the International Covenant on Civil and Political Rights.

109. The Working Group considers that, taking into account all the circumstances of the case, the appropriate remedy would be to release Mr. Amasha immediately and accord him an enforceable right to compensation and other reparations, in accordance with international law.

110. The Working Group urges the Government to ensure a full and independent investigation of the circumstances surrounding the arbitrary deprivation of liberty of Mr. Amasha and to take appropriate measures against those responsible for the violation of his rights.

111. The Working Group requests the Government to disseminate the present opinion through all available means and as widely as possible.

[33] See opinion No. 78/2017.

[34] See opinions No. 12/2023, No. 20/2023, No. 31/2023, No. 36/2023, No. 40/2023, No. 70/2023, No. 8/2024, No. 17/2024, No. 20/2024 and No. 32/2025.

[35] See opinion No. 78/2017.

Advance edited version

4. Follow-up procedure

112. In accordance with paragraph 20 of its methods of work, the Working Group requests the source and the Government to provide it with information on action taken in follow-up to the recommendations made in the present opinion, including:

(a) Whether Mr. Amasha has been released and, if so, on what date;

(b) Whether compensation or other reparations have been made to Mr. Amasha;

(c) Whether an investigation has been conducted into the violation of Mr. Amasha's rights and, if so, the outcome of the investigation;

(d) Whether any legislative amendments or changes in practice have been made to harmonize the laws and practices of Egypt with its international obligations in line with the present opinion;

(e) Whether any other action has been taken to implement the present opinion.

113. The Government is invited to inform the Working Group of any difficulties it may have encountered in implementing the recommendations made in the present opinion and whether further technical assistance is required, for example through a visit by the Working Group.

114. The Working Group requests the source and the Government to provide the above-mentioned information within six months of the date of transmission of the present opinion. However, the Working Group reserves the right to take its own action in follow-up to the opinion if new concerns in relation to the case are brought to its attention. Such action would enable the Working Group to inform the Human Rights Council of progress made in implementing its recommendations, as well as of any failure to take action.

115. The Working Group recalls that the Human Rights Council has encouraged all States to cooperate with the Working Group and has requested them to take account of its views and, where necessary, to take appropriate steps to remedy the situation of persons arbitrarily deprived of their liberty, and to inform the Working Group of the steps they have taken.[36]

[*Adopted on 28 August 2025*]

[36] Human Rights Council resolution 51/8, paras. 6 and 9.

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